

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY MU (MIXED-USE) TO MUB (MIXED-USE BUSINESS EMPHASIS) FOR PROPERTY GENERALLY LOCATED NORTHWEST OF THE INTERSECTION OF WESTERN HILLS BOULEVARD AND YELLOWSTONE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on July 6, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 1 and 2 and a portion of a 20 foot vacated alley being adjacent to and west of said Lots 1 and 2, Block 1, Prairie Hills Addition, Cheyenne, Wyoming is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

114 and 124 Western Hills Blvd. **Zone District Map Amendment Process**

CASE NUMBER(s): UDC-20-00232

SUBDIVISION CODE: PHA 01

PREPARED BY: Mark Christensen

MEETING DATES:	Planning Commission:	July 06, 2020	
	City Council:	July 13, 2020	1 st Reading
	Public Service Committee:	July 21, 2020	
	City Council:	July 27, 2020	2 nd Reading
	Public Service Committee:	August 4, 2020	
	City Council:	August 10, 2020	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map & Checklist; Draft Neighbor Notification Letter; Neighbor Notification List; Response to Zone Change Review Criteria
- Neighbor Notification Letter – sent 6/15/2020 (sent to demonstrate compliance with notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on July 6, 2020, the City of Cheyenne Planning Commission recommended approval of the zone change request from County MU Mixed-Use to MUB Mixed-Use Business Emphasis by a vote of 3-0.

STAFF RECOMMENDATION: The Development Department recommends approval of the zone change request from County MU Mixed-Use to MUB Mixed-Use Business Emphasis.

STAFF REPORT

114 and 124 Western Hills Blvd. **Zone District Map Amendment Process**

CASE NUMBER(s): UDC-20-00232 **SUBDIVISION CODE:** PHA 01
PREPARED BY: Mark Christensen
PUBLIC HEARING: July 6, 2020 (Planning Commission)

OWNER: Wyoming Number 1 Properties Inc. Pegasus Ranch LLC
5827 Yellowstone Rd. PO Box 1204
Cheyenne, WY 82009 Cheyenne, WY 82003

State Highway Commission, The
PO Box 1708
Cheyenne, WY 82003

AGENT: AVI: Brad Emmons (307) 637-6017
1103 Old Town Lane #101
Cheyenne, WY 82009

PROJECT: 114 and 124 Western Hills Blvd. Annexation and Zone Change

WORK DESCRIPTIONS: A zone change request from County MU Mixed-use to MUB Mixed-use Business Emphasis for Lots 1 and 2 and a Portion of a 20 Foot Vacated Alley Being Adjacent to and West of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming

LOCATION:

1. Legal Description: Lots 1 and 2 and a Portion of a 20 Foot Vacated Alley Being Adjacent to and West of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming
2. Location: Northwest corner of the intersection of Western Hills Blvd. and Yellowstone Rd.
3. Address: 114 and 124 Western Hills Blvd.

SIZE: 0.75 acres

CURRENT ZONING: County MU Mixed-use
PROPOSED ZONING: MUB Mixed-Use Business Emphasis
EXISTING LAND USE: Residential/Office
PROPOSED LAND USE: Residential/Office

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Office	MUB	City
South	Bank, Office	CB	City
East	Office	CB	City
West	Residential	MUB	City

EXECUTIVE SUMMARY:

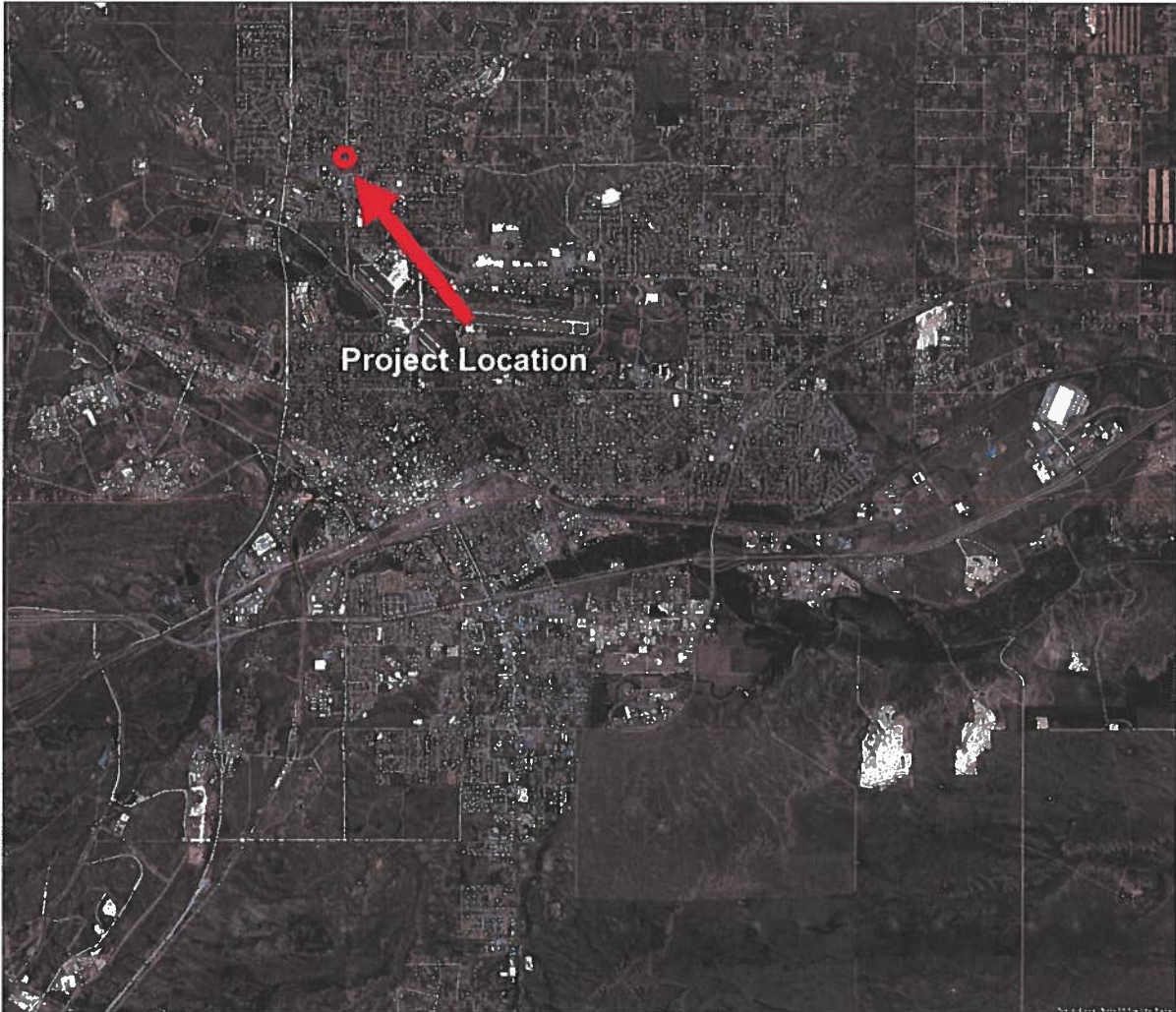
This zone change application proposes changing the zoning of Lots 1 and 2 and a portion of a 20-foot vacated alley being adjacent to and West of said Lots 1 and 2 of Block 1 of the Prairie Hills Addition from County MU Mixed-Use to MUB Mixed-Use Business Emphasis. The area is proposed to be annexed to the City of Cheyenne and therefore requires a City zone. The subject properties are proposed to be annexed to connect to City services provided by the Board of Public Utilities.

The future land use map designates the subject properties and surrounding area as Mixed-use Commercial Emphasis. This category includes a wide variety of land uses and activities, focused primarily on commercial activities, but also including other employment, public, and residential uses. The optimal zone for the Mixed-Use Commercial Emphasis future land use category is MUB Mixed-Use Business Emphasis. Furthermore, the MUB zoning designation conforms to the zoning of the surrounding properties within the incorporated City.

The current uses of the subject properties are residential and office. There is no proposed new development or redevelopment at this time.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located at 114 and 124 Western Hills Blvd.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject properties from Western Hills Blvd, facing northwest
Source: Development Office



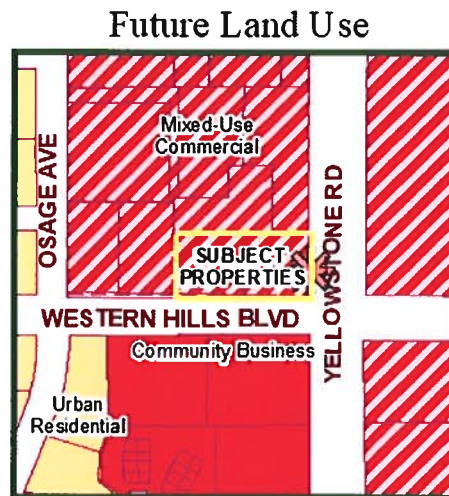
Photograph #2 – Image of the subject properties from Western Hills Blvd, facing northeast
Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change through the Future Land Use Map Designation and several policies contained within the Plan.

The future land use map identifies the subject property, and the immediate surrounding parcels, as Mixed-Use Commercial Emphasis. Mixed-Use Commercial includes a wide variety of land uses and activities, but also including other employment, public, and residential uses. The proposed zone, MUB Mixed-Use Business Emphasis, will allow for the broad mix of uses called for by the Mixed-Use Commercial future land use map designation.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

In addition to conforming with the future land use map contained within PlanCheyenne, the zone change request and annexation accomplishes several policies within PlanCheyenne.

Policy 1.1.A:

Balanced Mix of Land Uses: The Future Land Use Plan establishes a balanced mix of residential and non-residential land uses throughout the Cheyenne Area. The City and County should use the Future Land Use Plan and this Plan's policies as the main tools for guiding decisions about growth and development.

Assessment:

The proposed zoning map amendment will change the subject property's zoning to Mixed-use Business. This will allow for a variety of uses on the subject property fulfilling this objective and the future land use designation.

Policy 1.2.C:

Address annexations through duly adopted City/County annexation criteria, including measures to prevent future County "islands" within the Urban Service Boundary and treatment of existing enclaves.

Assessment: The annexation and subsequent zone change will remove a County pocket within the City.

Policy 1.4.A: *Infill Opportunities: Support compatible infill development in existing neighborhoods and districts through the use of design standards- design guidelines in the County- to address the scale, height, and character of infill as it relates to existing development.*

Assessment: There is currently no proposed new development on the subject property at this time. However, should the properties ever redevelop, the zone change will support a wide variety of uses and redevelopment opportunities in the form of infill development.

Policy 2.1.D: *Conversions of Homes Along Arterials: Support the adaptive reuse/redevelopment of existing residential structures with driveways facing major and minor arterials to home-based offices.*

Assessment: The MUB zone will allow the existing single-family structures to be converted to offices, should a change in use be proposed at this location.

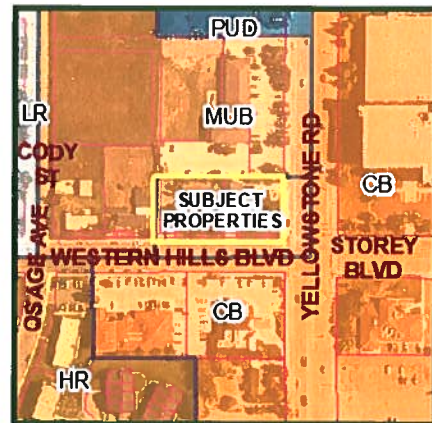
2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

This proposed zone change is compatible with the surrounding properties regarding zoning and future land use designation. The adjacent business and office park to the north is currently zoned Mixed-use Business Emphasis with a future land use designation of Mixed-use Commercial emphasis, as is the property immediately to the west. The proposed zone change will create consistent zoning for the northwest corner of the Yellowstone Road and Western Hills Boulevard intersection.

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

The property is more suitable to develop or redevelop under MUB zoning standards than County MU standards. The subject property is proposed to be annexed into the City of Cheyenne, which would require a City zoning designation. The subject property currently does not have access to City services in the form of water or sewer, which prompted the property owners to annex into the City of Cheyenne. The zoning designation of MUB most closely matches the County zoning designation of MU and will ensure the property is cohesive with the surrounding City MUB zone.

Current Zoning



Map #4 – Zone Districts
Source: Cheyenne/Laramie County GIS
Cooperative Program

4. STREETS & OPEN SPACE - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is seeking to rezone the land as is. Any additional lot requirements regarding the use of the parcel will be addressed in the site plan review process. The subject properties are at the intersection of two prominent arterials with a largely built-out street network.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUB zone is intended to have a diverse mix of uses in a compact development pattern. The subject property is adjacent to an area zoned MUB with a diverse array of uses that exemplify the intent of the District. Any development or redevelopment at this location will complement the surrounding uses and be required to meet the design objectives of the MUB zone. The MUB zone will ensure quality development that compliments the surrounding character on a prominent corner in the City, furthering the intent of the MUB district.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

There are currently no new development plans for the subject property. Future development (or redevelopment) on this parcel will have a wide variety of use opportunities. Staff is satisfied that the subject property will be able to meet all applicable development regulations of the MUB district should it redevelop.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

The following agencies were assigned to review this proposal: Community Recreation and Events, Engineering, Metropolitan Planning Organization, and Planning and Development.

Reviewing Agencies with Comments:

- Planning and Development
 - o **FYI** Existing County zoning and proposed City zone is logical. The corner house is currently being utilized as an office. Unsure of the adjacent lot.
 - o **Completed** Modify the zoning map to include the rest of the county pocket. WYDOT signature is preferred but not required since the City reserves the right through its own initiative to rezone property (UDC 2.2.1.b.1)
 - o **Completed** Please show the WyDOT parcel on the zone change map. Planning and Development would like to include this in the zone change.
 - o **Completed** Please show the dimensions and heights of existing buildings to remain (zone change application requires this)
 - o **Completed** Please provide dimensions of site accesses.
 - o **Completed** Please show any other items to remain on site (i.e. fences, etc.).

All other reviewing agencies did not provide Comments.

Other Comments Received:

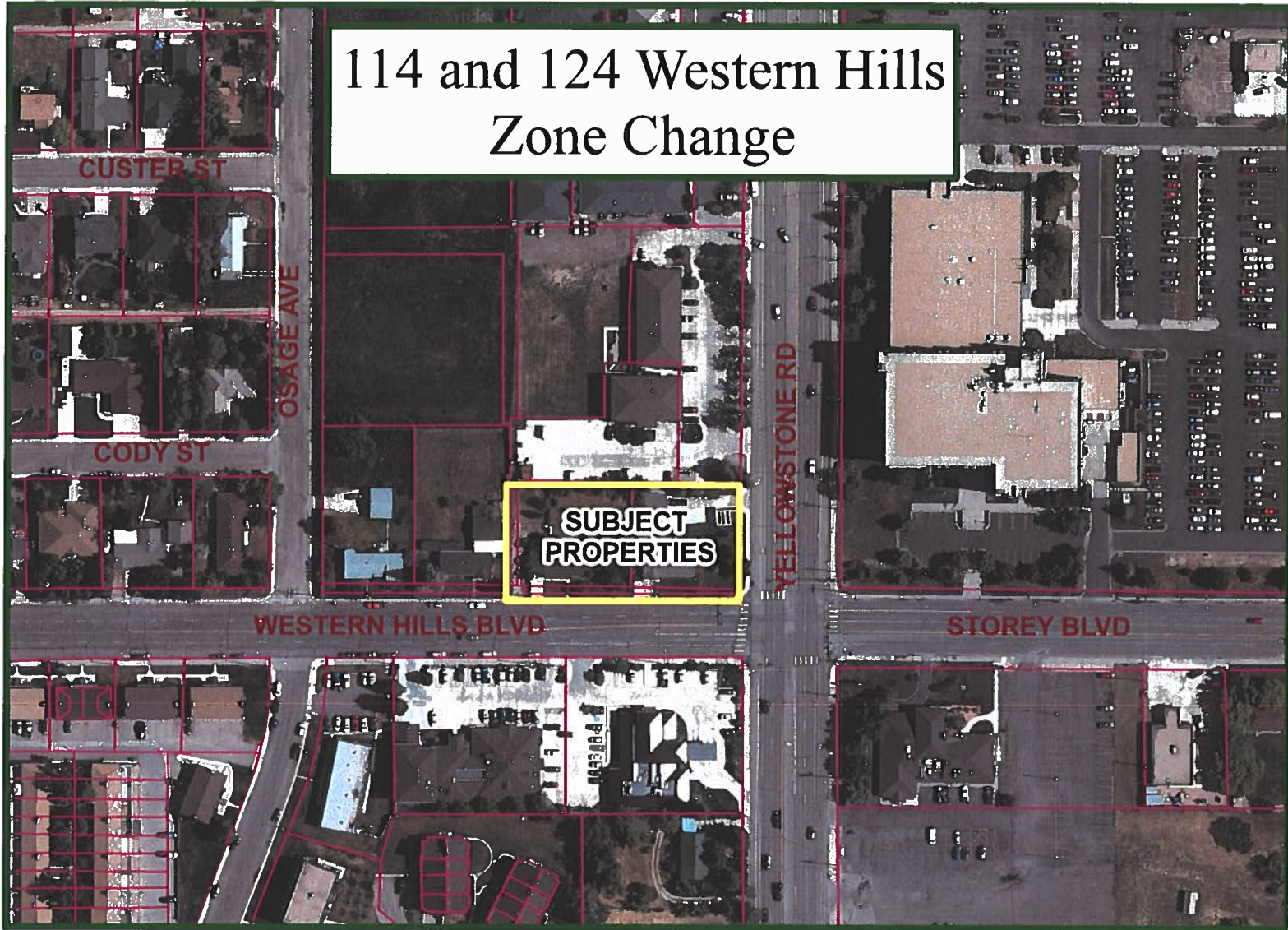
- None.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Cc: Owner, Agent/Applicant, File

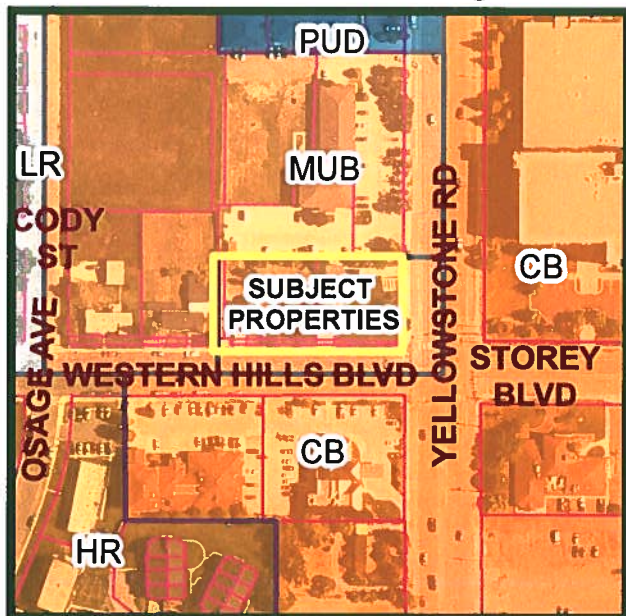
114 and 124 Western Hills Zone Change



Application Number: UDC-20-00232
 Applicant: Wyoming # 1 Properties Inc.
 Applicant: Pegasus Ranch LLC
 Agent: Brad Emmons, AVI

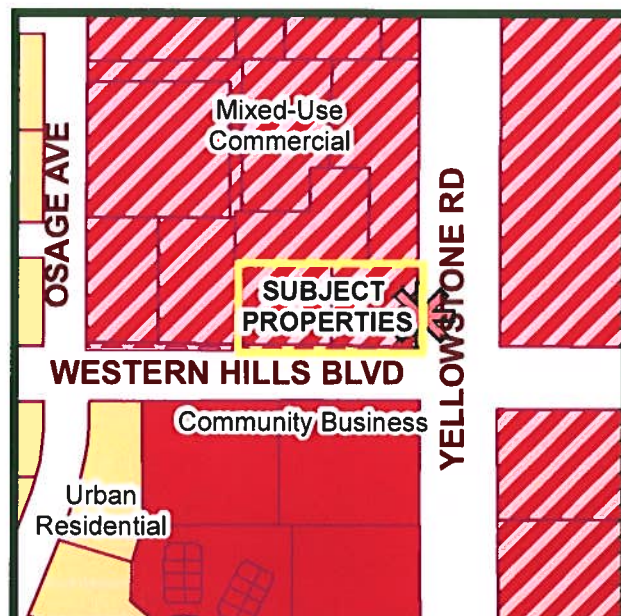
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 Feet

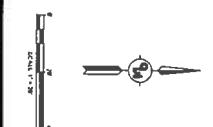
Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

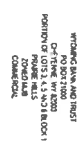
Future Land Use





BR/0111C
4106 YELLOWSTONE RD
C&E YELINE WY #2008
PORTION OF LOT 1 AND LOT 2 BLOCK 1
YELLOWSTONE PROCESSIONAL OFFICE PLAZA
ZONE D CB
COURTESY

PECASUS RAND LLC
PO BOX 1204
ONE TUNE, WY 82003
PORTION OF LOT 5 TO 11 AND 12 BLOCK 1
POWDER HILLS
ZONE D MAP
RESIDENTIAL



LEGEND

 PROPOSED ZONING INUB

 EXISTING FIRE HYDRANT

EXISTING AND PROPOSED USE RESIDENTIAL
ESTIMATED TOTAL POP. 2010 48

114 AND 124 WESTERN HILLS BOULEVARD

LEGAL DESCRIPTION

PREPARED MAY 2020

PREPARED FOR:
WYOMING #1 PROPERTIES INC
5827 YELLOWSTONE ROAD
CHEYENNE, WY 82009

ZONE CHANGE



iDeal
 Ideal
 100%
 100%
 100%

Or a strong NO 1 or 1